

# FITZHUGH RETAIL CENTER

DALLAS, TX  
(DFW MSA)



STRIVE

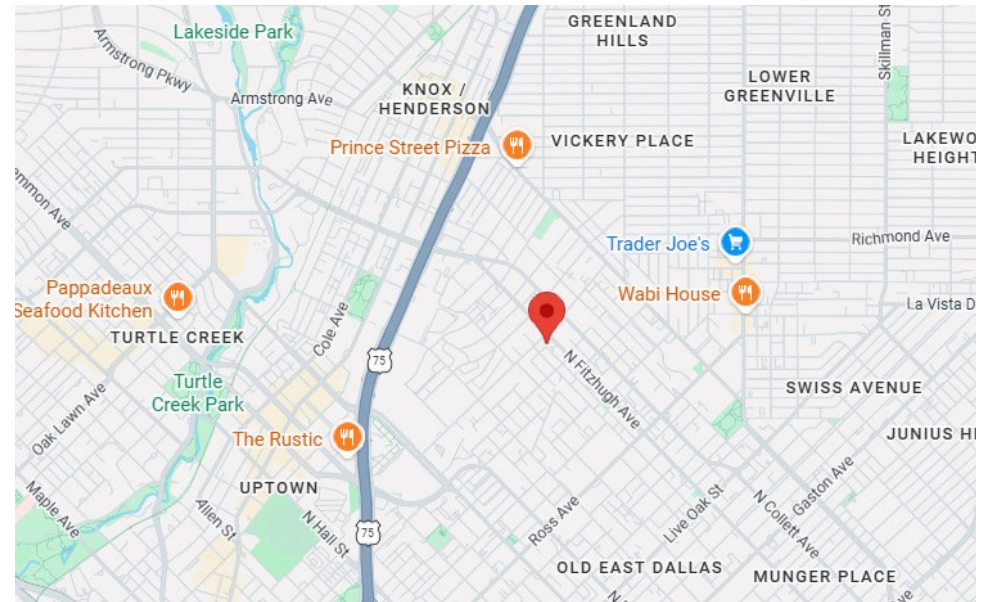


# Fitzhugh Retail Center

2325 N Fitzhugh Ave  
Dallas, TX 75204

## OFFERING SUMMARY

|                                               |             |
|-----------------------------------------------|-------------|
| Price                                         | \$6,750,000 |
| Cap Rate                                      | 6.00%       |
| Net Operating Income                          | \$404,767   |
| Occupancy                                     | 100%        |
| Year Built                                    | 1985        |
| Gross Leasable Area                           | 8,855 SF    |
| Lot Size                                      | 0.44 AC     |
| Adjacent 0.15 AC For Sale Separately - Page 8 | \$600,000   |





| PROJECTED INCOME & EXPENSES  |       | CURRENT     | PSF       |
|------------------------------|-------|-------------|-----------|
| Base Rent - Occupied Space   | 100%  | \$404,767   | \$45.71   |
| Base Rent - Lease Up Space   |       |             |           |
| GROSS POTENTIAL RENT         |       | \$404,767   | \$45.71   |
| Expense Reimbursements       |       |             |           |
| Real Estate Taxes            |       | \$74,149    | \$8.37    |
| Insurance                    |       | \$20,683    | \$2.34    |
| CAM                          |       | \$52,522    | \$5.93    |
| Management Fee               |       | \$22,942    | \$2.59    |
| Total Expense Reimbursements |       | \$170,296   | \$19.23   |
| GROSS POTENTIAL INCOME       |       | \$575,063   | \$64.94   |
| EFFECTIVE GROSS REVENUE      |       | \$575,063   | \$64.94   |
| Operating Expenses           |       |             |           |
| Real Estate Taxes            |       | (\$74,149)  | (\$8.37)  |
| Insurance                    |       | (\$20,683)  | (\$2.34)  |
| CAM                          |       | (\$52,522)  | (\$5.93)  |
| Management Fee               | 3.99% | (\$22,942)  | (\$2.59)  |
| Total Recoverable Expenses   |       | (\$131,204) | (\$19.23) |
| Net Operating Income         |       | \$404,767   | \$45.71   |

| EXPENSES          | CURRENT        | PSF     |
|-------------------|----------------|---------|
| Real Estate Taxes | \$74,149       | \$8.37  |
| Insurance         | \$20,683       | \$2.34  |
| Total CAM         | \$52,522       | \$5.93  |
| Management Fee    | 3.99% \$22,942 | \$2.59  |
| Total Expenses    | \$170,296      | \$19.23 |



| RENT ROLL |                      |         |           |           |            |             |               | FITZHUGH RETAIL CENTER |                   |                |         |               |            |            |
|-----------|----------------------|---------|-----------|-----------|------------|-------------|---------------|------------------------|-------------------|----------------|---------|---------------|------------|------------|
| Suite     | Tenant               | SQ FT   | % of SQFT | Start     | End        | Annual Rent | PSF           | Escalation Date        | Escalation Amount | Escalation PSF | Options | Option Amount | Option PSF | Lease Type |
| 200       | Knox Dental          | 2,300   | 25.97%    | 1/1/2025  | 12/31/2032 | \$132,459   | \$57.59       | 1/1/2027               | \$135,108         | \$58.74        |         |               |            | NNN        |
|           |                      |         |           |           |            |             |               | 1/1/2028               | \$137,811         | \$59.92        |         |               |            |            |
|           |                      |         |           |           |            |             |               | 1/1/2029               | \$140,567         | \$61.12        |         |               |            |            |
|           |                      |         |           |           |            |             |               | 1/1/2030               | \$143,378         | \$62.34        |         |               |            |            |
|           |                      |         |           |           |            |             |               | 1/1/2031               | \$146,246         | \$63.59        |         |               |            |            |
|           |                      |         |           |           |            |             |               | 1/1/2032               | \$149,178         | \$64.86        |         |               |            |            |
| 106A      | Pine Isle            | 900     | 10.16%    | 8/1/2025  | 7/31/2035  | \$38,700    | \$43.00       | 8/1/2026               | \$39,474          | \$43.86        |         |               |            | NNN        |
|           |                      |         |           |           |            |             |               | 8/1/2027               | \$40,263          | \$44.74        |         |               |            |            |
|           |                      |         |           |           |            |             |               | 8/1/2028               | \$41,069          | \$45.63        |         |               |            |            |
|           |                      |         |           |           |            |             |               | 8/1/2029               | \$41,890          | \$46.54        |         |               |            |            |
|           |                      |         |           |           |            |             |               | 8/1/2030               | \$42,728          | \$47.48        |         |               |            |            |
|           |                      |         |           |           |            |             |               | 8/1/2031               | \$43,582          | \$48.42        |         |               |            |            |
|           |                      |         |           |           |            |             |               | 8/1/2032               | \$44,454          | \$49.39        |         |               |            |            |
|           |                      |         |           |           |            |             |               | 8/1/2033               | \$45,343          | \$50.38        |         |               |            |            |
| 8/1/2034  | \$46,250             | \$51.39 |           |           |            |             |               |                        |                   |                |         |               |            |            |
| 202       | Glo Nail Salon       | 2,000   | 22.59%    | 4/1/2022  | 4/1/2027   | \$61,277    | \$30.64       |                        |                   |                |         |               |            | NNN        |
| 106B      | Stoner's Pizza Joint | 1,645   | 18.58%    | 10/1/2025 | 12/1/2035  | \$74,028    | \$45.00       | 12/1/2026              | \$76,249          | \$46.35        | 1 x 5   | \$99,490      | \$60.48    | NNN        |
|           |                      |         |           |           |            |             |               | 12/1/2027              | \$78,536          | \$47.74        |         |               |            |            |
|           |                      |         |           |           |            |             |               | 12/1/2028              | \$80,892          | \$49.17        |         |               |            |            |
|           |                      |         |           |           |            |             |               | 12/1/2029              | \$83,319          | \$50.65        |         |               |            |            |
|           |                      |         |           |           |            |             |               | 12/1/2030              | \$85,819          | \$52.17        |         |               |            |            |
|           |                      |         |           |           |            |             |               | 12/1/2031              | \$88,393          | \$53.73        |         |               |            |            |
|           |                      |         |           |           |            |             |               | 12/1/2032              | \$91,045          | \$55.34        |         |               |            |            |
|           |                      |         |           |           |            |             |               | 12/1/2033              | \$93,776          | \$57.00        |         |               |            |            |
| 12/1/2034 | \$96,590             | \$58.71 |           |           |            |             |               |                        |                   |                |         |               |            |            |
| End Suite | Pine Isle Commonsary | 690     | 7.79%     | 7/1/2026  | 6/30/2036  | \$31,050    | \$45.00       | 7/1/2027               | \$31,671          | \$45.90        |         |               |            | NNN        |
|           |                      |         |           |           |            |             |               | 7/1/2028               | \$32,304          | \$46.82        |         |               |            |            |
|           |                      |         |           |           |            |             |               | 7/1/2029               | \$32,951          | \$47.75        |         |               |            |            |
|           |                      |         |           |           |            |             |               | 7/1/2030               | \$33,610          | \$48.71        |         |               |            |            |
|           |                      |         |           |           |            |             |               | 7/1/2031               | \$34,282          | \$49.68        |         |               |            |            |
|           |                      |         |           |           |            |             |               | 7/1/2032               | \$34,967          | \$50.68        |         |               |            |            |
|           |                      |         |           |           |            |             |               | 7/1/2033               | \$35,667          | \$51.69        |         |               |            |            |
|           |                      |         |           |           |            |             |               | 7/1/2034               | \$36,380          | \$52.72        |         |               |            |            |
| 7/1/2035  | \$37,108             | \$53.78 |           |           |            |             |               |                        |                   |                |         |               |            |            |
| 105       | ZAAP Kitchen         | 1,320   | 14.91%    | 8/1/2025  | 7/31/2032  | \$62,772    | \$47.55       | 8/1/2026               | \$64,027          | \$48.51        |         |               |            | NNN        |
|           |                      |         |           |           |            |             |               | 8/1/2027               | \$65,308          | \$49.48        |         |               |            |            |
|           |                      |         |           |           |            |             |               | 8/1/2028               | \$66,614          | \$50.47        |         |               |            |            |
|           |                      |         |           |           |            |             |               | 8/1/2029               | \$67,946          | \$51.47        |         |               |            |            |
|           |                      |         |           |           |            |             |               | 8/1/2030               | \$69,305          | \$52.50        |         |               |            |            |
|           |                      |         |           |           |            |             |               | 8/1/2031               | \$70,691          | \$53.55        |         |               |            |            |
| Occupied  |                      | 8,855   | 100.00%   |           | \$400,286  | \$45.20     | \$404,767 (1) |                        |                   |                |         |               |            |            |
| Vacant    |                      | 0       | 0.00%     |           |            |             |               |                        |                   |                |         |               |            |            |
| Total     |                      | 8,855   | 100.00%   |           |            |             |               |                        |                   |                |         |               |            |            |

(1) Analysis Start Date is 7/1/2026 and Takes Into Consideration a 1 Year Hold From This Date





DBA  
Public/Private  
Locations  
Line of Business

One Dental Group  
Private  
10  
One Dental Group is a network of dental offices in and around Dallas, specialized in providing general, cosmetic, and restorative dental services. Our mission is to provide quality dental care to everyone. With 10 dental offices across Dallas, we're proud to serve patients in all convenient locations, including Arlington, Kennedale, Uptown Dallas, Oak Cliff (Cockrell Hill & Westmoreland), Fair Park, Red Bird, East Dallas, Little Elm, and Denton. Wherever you are, with One Dental Group, quality dental care is never far away.



DBA  
Public/Private  
Line of Business

Glo Nail Lounge & Spa  
Private  
Glo Nail Lounge & Spa is a luxury nail salon founded in January 2023 and has since been on a mission to redefine the traditional nail service industry. Since the salon's grand opening, the staff at Glo has committed to deliver an efficient and high-end service to all of its clients. Our emphasis on quality, comfort, and attention to detail allows customers an individualized experience where clients can receive exceptional nail care.





|                     |                                                                                                                                                                                                                                                                                                                                                                                                                                     |
|---------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| DBA                 | Stoner's Pizza Joint                                                                                                                                                                                                                                                                                                                                                                                                                |
| Number of Locations | 50                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| Public/Private      | Private                                                                                                                                                                                                                                                                                                                                                                                                                             |
| Line of Business    | Stoner's Pizza Joint is the local, cool pizza joint that satisfies consumers' craving for high-quality, affordable pizza. We are fun, funny, smart, and we know we are in two businesses. The pizza business where we must work with franchisees to serve high quality pizza at an affordable price to satisfy our customers, and The franchising business where we must help every franchisee achieve a good return on investment. |



|                     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
|---------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| DBA                 | ZAAP LAO & THAI SWEET TREATS                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| Number of Locations | 10                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| Public/Private      | Private                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| Line of Business    | We at ZAAP Kitchen would like to help put Laotian cuisine on the foodie map . Lao food is quickly becoming discovered in the urban food scene. The first thing to know about Lao food is that sticky rice is the national staple of Laos. Laotian people eat sticky rice with basically every meal. Sticky rice, laab, papaya salad: this is Thai food, right? Not originally. These well-known Asian dishes that have traveled the globe to appear on Thai restaurant menus everywhere are actually Laotian in origin. Compared to neighboring Thailand and Vietnam, Laos has a relatively low profile when it comes to cuisine. Once you start tasting the glory of Lao food, you'll never look back. |



|                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
|------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| DBA              | Pine Isle                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| Public/Private   | Private                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| Line of Business | From an early age, Kevin knew food was his true calling. His journey took him from the prestigious kitchens of Le Cordon Bleu to an incredible opportunity with Nobu on the island of Lānaʻi. It was there, surrounded by the natural beauty and rich culinary traditions of Hawaii, that a big-city kid fell in love with the laid-back island lifestyle. Over five years, Kevin fully immersed himself in Hawaiian cuisine, mastering simple yet flavorful dishes like loco moco and pork lau lau. Now back in his hometown of Dallas, he's bringing those island-inspired flavors to the mainland with Pine Isle—a takeout-only concept focused on high-quality meals and fast, seamless service.. |



- 100% Occupied Multi-Tenant Retail Center Located in One of Dallas' Most Vibrant Suburbs
- Core, Urban-Infill Location on Hard Corner of N Fitzhugh Ave & Capitol Ave - Minutes from Major Thoroughfares N Central Exp & Ross Ave
- Long Term NNN Leases in Place with Built in Rental Escalations in Primary Lease Terms
- Complimentary Mix of Service Oriented Retail & Medical Tenants
- High-Density Area with Populations over 415,000 in 5-Mile Radius & 1.5M in 10-Mile Radius
- Average Household Income of \$121,000 in 2-Mile Radius - 1.5x the National Average
- 2024 Consumer Spending Over \$2.1B in 2-Mile Radius & Over \$1.6B Spent on Food/Alcohol in 5-Mile Radius (Source CoStar)
- Walking Distance from Brand New 161,000 SF Mixed-Use Development of Retail, Office, & Restaurant Space on Henderson Ave. [Click here](#) for More Info
- Proximity to Downtown, Uptown, Knox/Henderson, Lower Greenville, Lakewood & Deep Ellum
- Surrounding National Retailers Include Kroger, Target, CVS, Walgreens, PetSmart, Ross, OfficeMax, LA Fitness, Bank of America, Jack in the Box, 7-Eleven, F45, Raising Canes, & Many More

## SNAPSHOT



12,156

Estimated Vehicle  
Per Day - N Fitzhugh

\$121,021

Average Household  
Income

\$2.1B

Consumer Spending:  
2 Mile Radius (2025)

415,000

Population:  
5 Mile Radius









LP LOCAL PUBLIC EATERY

WHEEL DRIVE

6

GEMMA

Brand New  
Mixed-Use Development  
161,000 SF of Office,  
Retail & Restaurants

Lower Greenville  
10,035 Households

BURGER KING

Cane's

WING STATION

SPROUTS  
FARMERS MARKET

Ross Ave

LARQ HENDERSON  
Apartments

Garret Ave

Henderson Ave

STRATA  
Apartments

Bennett Ave

CVS

BENNETT PLACE  
APARTMENTS

Separate  
Land  
Available

SITE

LO MICHOACANA  
MEAT MARKET

N Fitzhugh Ave 12,156 VPD



Capitol Ave

2,547 VPD

STRANGEWAYS

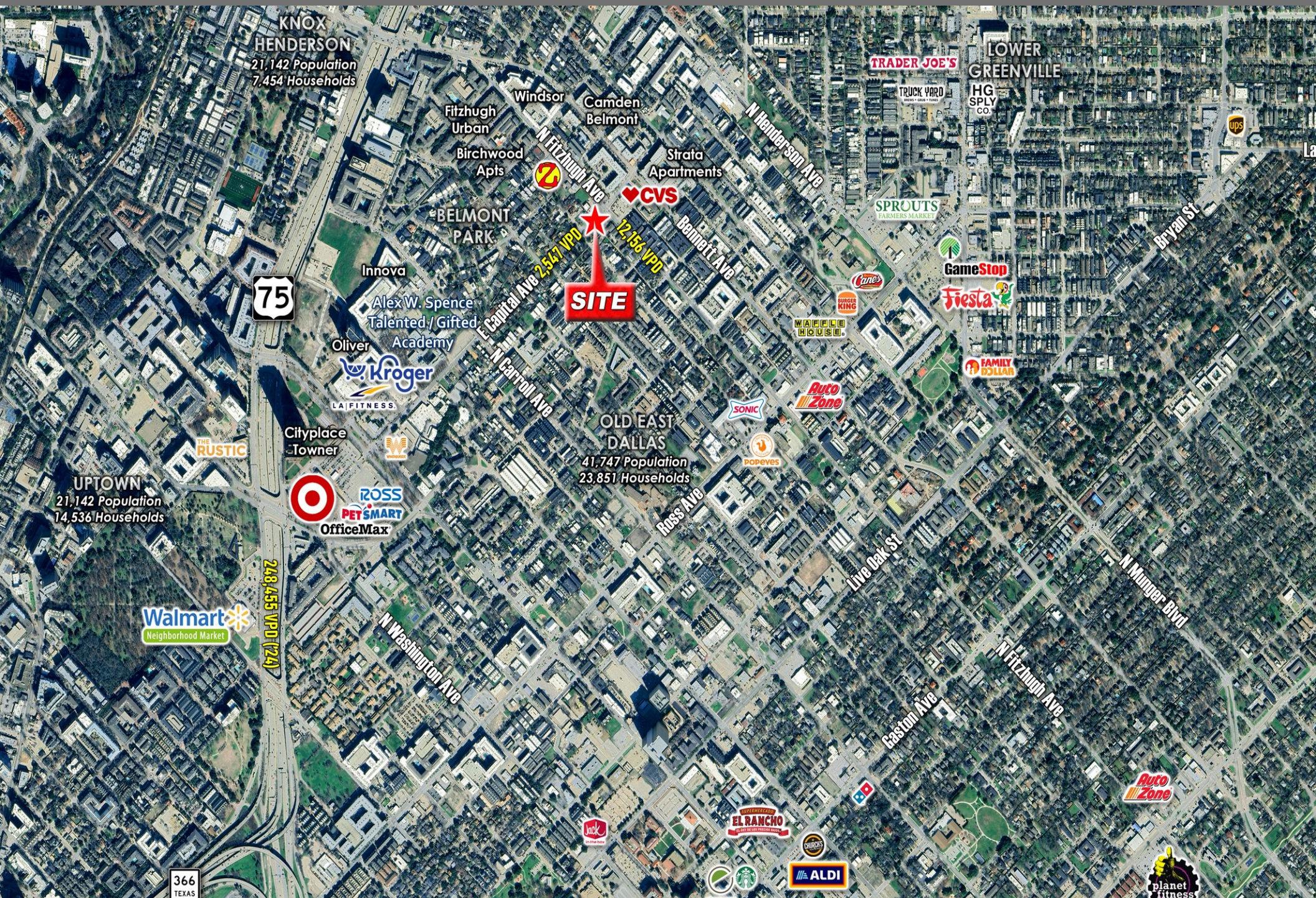




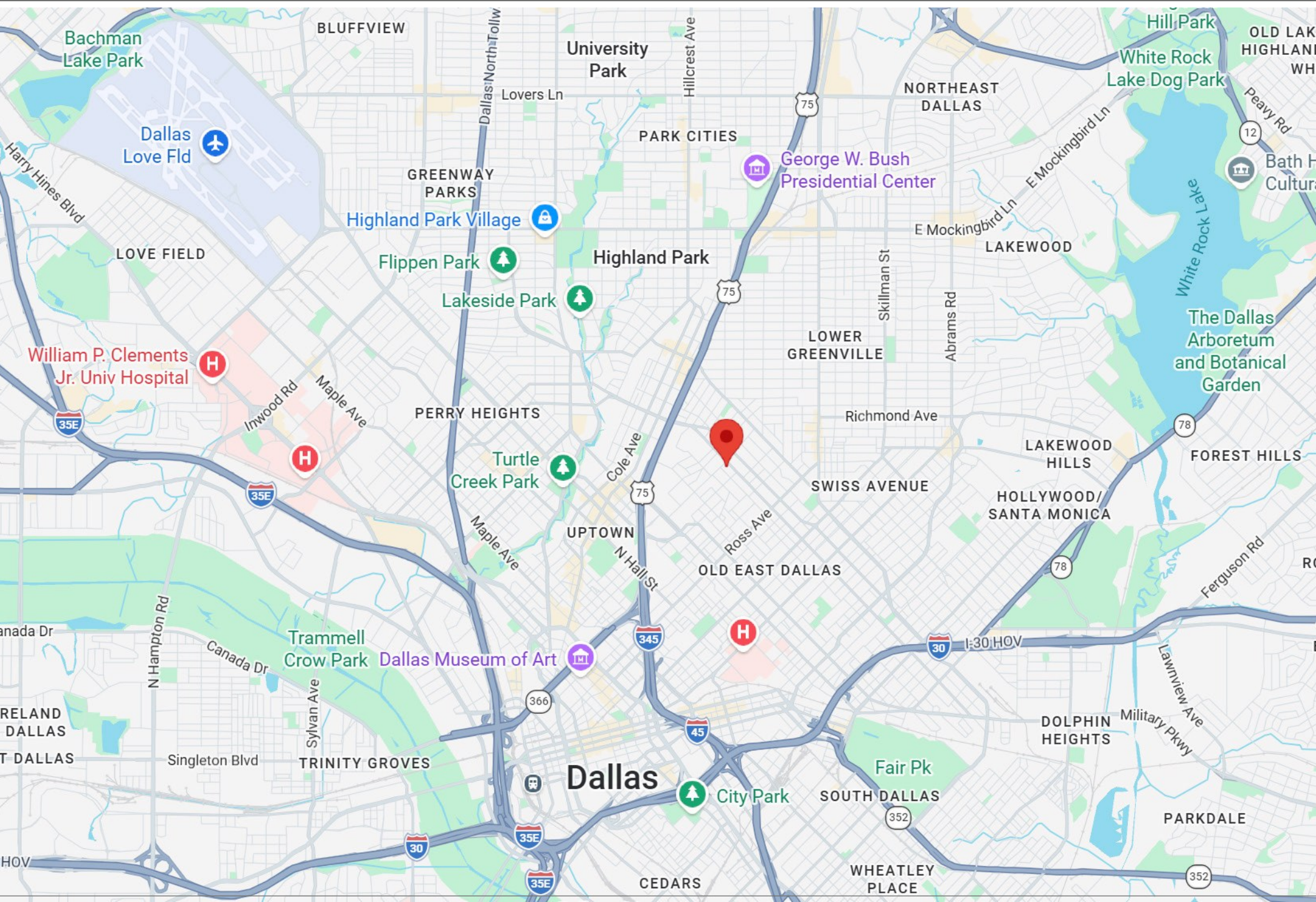




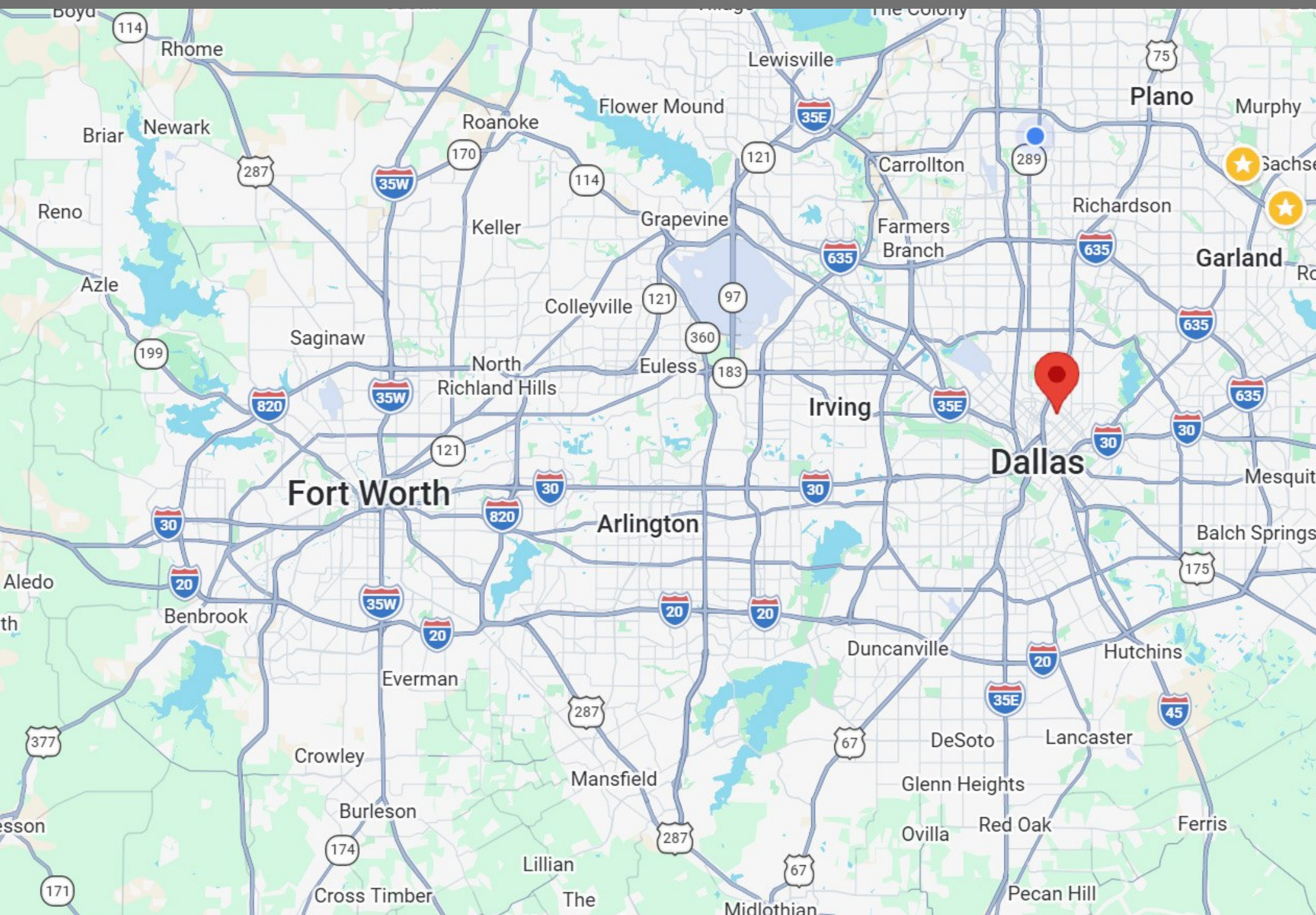
















# Dallas - Fort Worth, TX

## OVERVIEW

Dallas encompasses half of the Dallas-Fort Worth Metroplex and is the third-largest city in Texas and the ninth-largest city in the United States. Dallas is home to the third-largest concentration of Fortune 500 companies in the country and is the largest economic center of the Dallas-Fort Worth metropolitan area. The Metroplex has strong submarket occupancy rates, is home to more shopping centers per capita and has one of the largest concentrations of corporate headquarters for publicly traded companies in the United States.

The city is the largest economic center of the 12-county Dallas-Fort Worth-Arlington metropolitan area, which had a population of 7,573,136 according to the U.S. Census Bureau's 2019 population estimates. From 2010 to 2019, the DFW Metroplex had the largest numerical population growth of any MSA in the United States.

The metropolitan economy is the fourth-largest and third-fastest growing in the United States, with a 2017 real GDP of \$535.5 billion. In 2018, Dallas had both the highest job growth rate and the most jobs added in the nation, and is the fourth-largest employment center in the nation (behind New York

City, Los Angeles, and Chicago) with more than three million non-farm jobs. In the latest rankings released in 2018, Dallas was rated as a "beta plus" world city by the Globalization and World Cities Study Group & Network. Dallas is also ranked 14th in world rankings of GDP by the Organization for Economic Co-operation and Development. The DFW Metroplex has one of the largest concentrations of corporate headquarters for publicly traded companies in the United States. As of 2020, the city of Dallas has 10 Fortune 500 companies, and the DFW region as a whole has 25.

Dallas is the best-ranked city on the Regulatory Climate Index thanks to its efficient local regulations. Entrepreneurs and small businesses can expect a welcoming business environment across all five areas of local regulation. Dallas scores above average across each meaningful measure of an interaction that a business has with a local government agency through procedure, time, and cost. These rankings reflect the city's continuing efforts to develop programs and initiatives to strengthen the business environment, provide access to capital, and encourage economic growth at the local level.

## QUICK STATS

No. 1

Fastest Growing MSA in the U.S. from 2010 to 2019 (U.S. Census Bureau)

4<sup>th</sup>

Largest Metropolitan Area in the United States

5<sup>th</sup>

Fastest Growing Economy in the U.S. (Forbes)

25

Fortune 500 Companies Call DFW Home (American City Business Journals)

10K

Home to over 10,000 corporate headquarters, making it the largest concentration in the U.S.



|                                | 2 Miles   | 5 Miles   | 10 Miles  |
|--------------------------------|-----------|-----------|-----------|
| Population                     |           |           |           |
| 2010 Population                | 110,370   | 384,880   | 1,328,877 |
| 2024 Population                | 121,815   | 414,041   | 1,342,505 |
| 2029 Population Projection     | 123,490   | 417,909   | 1,339,300 |
| Annual Growth 2020-2024        | 2.6%      | 1.9%      | 0.3%      |
| Annual Growth 2024-2029        | 0.3%      | 0.2%      | 0%        |
| Median Age                     | 34.7      | 35        | 34.5      |
| Bachelor's Degree or Higher    | 63%       | 51%       | 33%       |
| U.S. Armed Forces              | 74        | 167       | 717       |
| Population by Race             |           |           |           |
| White                          | 77,477    | 210,666   | 481,118   |
| Black                          | 11,799    | 69,452    | 268,168   |
| American Indian/Alaskan Native | 584       | 2,223     | 9,989     |
| Asian                          | 6,509     | 21,793    | 53,809    |
| Hawaiian & Pacific Islander    | 52        | 154       | 452       |
| Two or More Races              | 25,394    | 109,752   | 528,969   |
| Hispanic Origin                | 25,787    | 117,930   | 604,825   |
| Housing                        |           |           |           |
| Median Home Value              | \$488,161 | \$476,401 | \$281,691 |
| Median Year Built              | 1997      | 1990      | 1977      |

|                           | 2 Miles   | 5 Miles   | 10 Miles |
|---------------------------|-----------|-----------|----------|
| Households:               |           |           |          |
| 2020 Households           | 63,407    | 183,812   | 519,371  |
| 2024 Households           | 69,890    | 198,588   | 527,805  |
| 2029 Household Projection | 70,839    | 200,580   | 527,132  |
| Annual Growth 2020-2024   | 2.8%      | 2.4%      | 1.2%     |
| Annual Growth 2024-2029   | 0.3%      | 0.2%      | 0%       |
| Owner Occupied            | 19,820    | 64,557    | 209,345  |
| Renter Occupied           | 51,019    | 136,023   | 317,787  |
| Avg Household Size        | 1.7       | 2         | 2.4      |
| Avg Household Vehicles    | 1         | 1         | 2        |
| Total Consumer Spending   | \$2.2B    | \$5.9B    | \$15B    |
| Income                    |           |           |          |
| Avg Household Income      | \$121,021 | \$108,519 | \$89,517 |
| Median Household Income   | \$86,612  | \$72,339  | \$60,322 |
| < \$25,000                | 11,032    | 36,065    | 109,677  |
| \$25,000 - 50,000         | 8,291     | 32,708    | 111,462  |
| \$50,000 - 75,000         | 12,205    | 34,021    | 96,466   |
| \$75,000 - 100,000        | 7,355     | 20,497    | 55,563   |
| \$100,000 - 125,000       | 6,309     | 16,300    | 39,935   |
| \$125,000 - 150,000       | 5,171     | 12,685    | 29,861   |
| \$150,000 - 200,000       | 6,488     | 14,659    | 30,574   |
| \$200,000+                | 13,038    | 31,656    | 54,268   |

Demographic data © CoStar 2021



## CONFIDENTIALITY AGREEMENT

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This offering memorandum has been prepared to provide summary, unverified financial and physical information to prospective purchasers, and to establish only a preliminary level of interest in the subject property. The information contained herein is not a substitute for a thorough due diligence investigation. STRIVE has not made any investigation, and makes no warranty or representation with respect to the income or expenses for the subject property, the future projected financial performance of the property, the size and square footage of the property and improvements, the presence or absence of contaminating substances, PCBs or asbestos, the compliance with local, state and federal regulations, the physical condition of the improvements thereon, or the financial condition or business prospects of any tenant, or any tenant's plans or intentions to continue its occupancy of the subject property. The information contained in this offering memorandum has been obtained from sources we believe to be reliable; however, STRIVE has not verified, and will not verify, any of the information contained herein, nor has STRIVE conducted any investigation regarding these matters and makes no warranty or representation whatsoever regarding the accuracy or completeness of the information provided. All potential buyers must take appropriate measures to verify all of the information set forth herein. Prospective buyers shall be responsible for their costs and expenses of investigating the subject property.

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Any projections, opinions, assumptions or estimates used in this Marketing Brochure are for example only and do not represent the current or future performance of this property. The value of a commercial property to you depends on factors that should be evaluated by you and your tax, financial and legal advisors. Buyer and Buyer's tax, financial, legal, and construction advisors should conduct a careful, independent investigation of any commercial property to determine to your satisfaction with the suitability of the property for your needs.

Like all real estate investments, this investment carries significant risks. Buyer and Buyer's legal and financial advisors must request and carefully review all legal and financial documents related to the property and tenant. While the tenant's past performance at this or other locations is an important consideration, it is not a guarantee of future success. Similarly, the lease rate for some properties, including newly-constructed facilities or newly-acquired locations, may be set based on a tenant's projected sales with little or no record of actual performance, or comparable rents for the area. Returns are not guaranteed; the tenants and any guarantors may fail to pay the lease rent or property taxes, or may fail to comply with other material terms of the lease; cash flow may be interrupted in part or in whole due to market, economic, environmental or other conditions. Regardless of tenants history and lease guarantees, Buyer is responsible for conducting his/her own investigation of all matters affecting the intrinsic value of the property and the value of any long-term leases, including the likelihood of locating replacement tenants if any of the current tenants should default or abandon the property, and the lease terms that Buyer may be able to negotiate with any potential replacement tenants considering the location of the property, and Buyer's legal ability to make alternate use of the property.

**By accepting this Marketing Brochure you agree to release STRIVE and hold it harmless from any kind of claim, cost, expense, or liability arising out of your investigation and/or purchase of this commercial property.**





## Information About Brokerage Services

**Texas law requires all real estate license holders to give the following information about brokerage services to prospective buyers, tenants, sellers and landlords.**



### TYPES OF REAL ESTATE LICENSE HOLDERS:

- A **BROKER** is responsible for all brokerage activities, including acts performed by sales agents sponsored by the broker.
- A **SALES AGENT** must be sponsored by a broker and works with clients on behalf of the broker.

### A BROKER'S MINIMUM DUTIES REQUIRED BY LAW (A client is the person or party that the broker represents):

- Put the interests of the client above all others, including the broker's own interests;
- Inform the client of any material information about the property or transaction received by the broker;
- Answer the client's questions and present any offer to or counter-offer from the client; and
- Treat all parties to a real estate transaction honestly and fairly.

### A LICENSE HOLDER CAN REPRESENT A PARTY IN A REAL ESTATE TRANSACTION:

**AS AGENT FOR OWNER (SELLER/LANDLORD):** The broker becomes the property owner's agent through an agreement with the owner, usually in a written listing to sell or property management agreement. An owner's agent must perform the broker's minimum duties above and must inform the owner of any material information about the property or transaction known by the agent, including information disclosed to the agent or subagent by the buyer or buyer's agent.

**AS AGENT FOR BUYER/TENANT:** The broker becomes the buyer/tenant's agent by agreeing to represent the buyer, usually through a written representation agreement. A buyer's agent must perform the broker's minimum duties above and must inform the buyer of any material information about the property or transaction known by the agent, including information disclosed to the agent by the seller or seller's agent.

**AS AGENT FOR BOTH - INTERMEDIARY:** To act as an intermediary between the parties the broker must first obtain the written agreement of each party to the transaction. The written agreement must state who will pay the broker and, in conspicuous bold or underlined print, set forth the broker's obligations as an intermediary. A broker who acts as an intermediary:

- Must treat all parties to the transaction impartially and fairly;
- May, with the parties' written consent, appoint a different license holder associated with the broker to each party (owner and buyer) to communicate with, provide opinions and advice to, and carry out the instructions of each party to the transaction.
- Must not, unless specifically authorized in writing to do so by the party, disclose:
  - that the owner will accept a price less than the written asking price;
  - that the buyer/tenant will pay a price greater than the price submitted in a written offer; and
  - any confidential information or any other information that a party specifically instructs the broker in writing not to disclose, unless required to do so by law.

**AS SUBAGENT:** A license holder acts as a subagent when aiding a buyer in a transaction without an agreement to represent the buyer. A subagent can assist the buyer but does not represent the buyer and must place the interests of the owner first.

### TO AVOID DISPUTES, ALL AGREEMENTS BETWEEN YOU AND A BROKER SHOULD BE IN WRITING AND CLEARLY ESTABLISH:

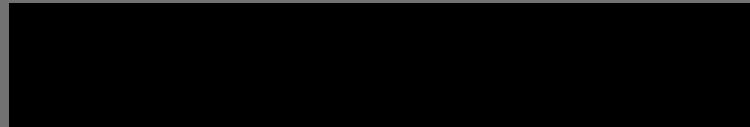
- The broker's duties and responsibilities to you, and your obligations under the representation agreement.
- Who will pay the broker for services provided to you, when payment will be made and how the payment will be calculated.

**LICENSE HOLDER CONTACT INFORMATION:** This notice is being provided for information purposes. It does not create an obligation for you to use the broker's services. Please acknowledge receipt of this notice below and retain a copy for your records.



# exclusively listed

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